



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

January 5, 2021, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

4:00 PM WORK SESSION – VIA LIFESIZE ELECTRONIC MEETING

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, and Carolyn Love. Councilmembers Colby Curtis and Jared Gray were excused.

CITY STAFF PRESENT ELECTRONICALLY: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Kimberly Ruesch, Finance Director; Pete Kane, Planning Manager; Tayler Jensen, Senior Planner; Jessa Porter, Planner; Fionnuala Kofoed, City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Ross Fowlks, Fire Chief; Eric McDowell, Deputy Sheriff; Linda Peterson, Communications Director; Evan Berrett, Senior Management Analyst; and Robert Ballif, Engineering Assistant.

Public meetings will be held electronically in accordance with Executive Order 2020-1 Suspending the Enforcement of Provisions of Utah Code 52-4-202 and 54-4-207 due to Infectious Disease COVID-19 Novel Coronavirus issued by Governor Herbert on March 18, 2020.

Mayor Westmoreland called the meeting to order at 4:02 p.m.

1. CITY ADMINISTRATOR INFORMATION ITEMS

1.A. DISCUSSION – Lot Size Transition Removal

Planning Manager Pete Kane presented the item. The City Council adopted a Municipal Code amendment that added "Zone Transitioning" to EMMC 17.60 Landscaping, Buffering, Fencing, and Transitioning on October 6, 2020. This amendment establishes requirements for compatible zone adjacencies for all zoning districts, which establishes appropriate zone transitions that occur going forward. Planning Commission discussion noted the new zone transition section achieves the intent and purpose of the lot size transition section of EMMC 17.60.150. The Planning Commission held a public hearing on the Municipal Code amendment on November 24, 2020, and voted unanimously, with one absentee, to recommend approval of the amendment to the City Council.

Councilmember Love expressed concern that the zone transitioning standards required nine lot size transitions due to the lot size limitations of the compatible buffer zones, and felt the requirement might be burdensome for some properties, especially due to the standards in the table also limiting compatible adjacent land uses.

Councilmember Burnham concurred with Councilmember Love's concerns. She met with a developer that had to increase density in a project in order to adhere to the zone transitioning standards. She recommended further examination of the standards to evaluate potential future impacts including increasing the density in projects.

Mr. Kane clarified that the zone transition table contained the same transitioning for increasing and decreasing lot size. The lot size transition table that would be removed contained separate tables for increasing and decreasing density for residential zone. The previously adopted zoning transition table standards prohibit businesses from being located adjacent to single-family homes and requires the inclusion of higher density housing as a buffer. The City Council could amend the standards to allow commercial uses adjacent to single-family residents if desired. He noted that the residential zone standards allow for larger lot transitions as residential zones have lot size minimums but not maximums. Lot size requirements may also be included as terms of master development agreements (MDAs) and master development plans (MDPs) or conditions of rezone approvals.

1.B. DISCUSSION – Historic Preservation Overlay Zone

Mr. Kane presented the item. In reviewing Municipal Code standards from other municipalities, it was determined that a historical preservation overlay zoning designation would be more appropriate than a historical preservation zone, as an overlay would allow properties to have an underlying zoning designation. The proposed Municipal Code amendment would incorporate language to establish an overlay zone, clarify the historical site designation process, and allow the Planning Commission to act as the Historic Preservation Board in absence of such a board.

The historic preservation process begins with identification by any person of the location of a possible important historical or archaeological site to the City. An on-site evaluation will be conducted with the property owner's consent. Next, the site will be considered for addition to the local registry through a request for designation submitted to the City. The Historic Preservation Board will then hold a public meeting to evaluate the request and criteria for designation. Once a property or site is on the local registry, it is eligible for the zoning overlay. A request to rezone the property or site may then be submitted to the City. The Planning Commission will hold a public hearing on the rezone request to make a recommendation to the City Council. Finally, the City Council will hold a public hearing to take action on the rezone request.

The Planning Commission held a public hearing on November 24, 2020, and voted unanimously, with one absentee, to recommend approval of the Municipal Code amendment.

City Administrator Paul Jerome stated that grants issued by the State Historic Preservation Office to protect historic sites require a Historical Preservation Board. City efforts to establish a Historical Preservation Board were delayed by the pandemic and the qualifications to serve on the board. Staff will verify the ability of the Planning Commission to serve as the Historic Preservation Board.

Discussion ensued regarding the benefits and viability of the Planning Commission being allowed to serve as the Historical Preservation Board.

Mr. Kane stated that he will verify if the Planning Commission serving as the board would meet grant qualification requirements.

1.C. DISCUSSION – Ridgeline Protection Overlay Zone

Mr. Kane presented the item. The Planning Commission held a discussion during the summer of 2020 as to whether the Ridgeline Protection Standards chapter should be updated. The conversation focused on the ability to better visualize and increase awareness of areas that fall under these regulations by establishing a zoning district. A zoning overlay designation was proposed as it would allow a property's existing zoning designation to carry which includes land uses while adding the regulations of this chapter. The proposed Municipal Code amendment uses language in EMMC 17.62 Ridgeline Protection Standards to establish the overlay zone and references to that zone as a separate chapter from the standards. The amendment does not change any of the existing standards within EMMC 17.62 to allow the current standards to remain enforceable while properties undergo the rezone process to apply the overlay zone. Once the overlay zone is applied to the applicable properties, should the amendment be approved, the City can then amend Municipal Code by repealing EMMC 17.62 Ridgeline Protection Standards, as the chapter would be redundant and no longer necessary.

The Planning Commission held a public hearing on the Municipal Code amendment on November 24, 2020, and voted unanimously, with one absentee, to recommend approval of the amendment to the City Council with the condition: staff shall work with Legal to incorporate language that will protect the areas that fall under the definition of “ridge,” “prominent ridge,” and “ridgeline setback” be subject to the regulations of this chapter until the rezoning process is completed and the zoning overlay added to the City’s zoning map. The amendment as presented and included in the staff report and agenda reflects the Planning Commission request.

Mr. Kane explained that zoning maps are traditionally used as a tool for the property owners to determine all zoning regulations for their property. Currently, property owners would need to research Municipal Code to be aware of ridgeline protection standards. The addition of the overlay to the map would increase the visibility and awareness of the standards for landowners.

Discussion ensued regarding future amendments to create and adopt wildlife protection overlays and/or conservation easements.

1.D. DISCUSSION – Woodward Property Rezone

Mr. Kane presented the item. The subject property of approximately 4.73 acres is located near 5200 Lake Mountain Road and includes the Lake Mountain Road right-of-way. The parcel is currently zoned Agriculture. The property owner would like to build a home on the property which would require a rezone to RA2, as the Agricultural zone requires a lot size of 5 acres or greater for home construction.

The majority of the parcel is designated as Agriculture/Rural Density One on the General Plan. 1.1 acres on the west side of the property is designated as Parks and Open Space. An RA2 zone is an

appropriate designation; however, RA2 is not an appropriate designation for the Parks and Open Space land use portion. Staff recommends this portion of the land to be rezoned to Natural Open Space (OS-N). The proposed rezone is compatible with the current use of the surrounding properties. The RA2 zone is permitted as a compatible zone to be adjacent to the Agriculture Zone. The rezone will not burden City services. Staff has requested for the property owner to dedicate a 66-foot wide right-of-way to the City. The traffic generation from the single-family home will have a negligible effect.

The Planning Commission held a public hearing on the rezone request on December 8, 2020, and unanimously voted to recommend approval of the rezone to the City Council with the following conditions:

1. The 1.1 acres on the west side of the parcel shall be zoned OS-N from the western property line up to the eastern border of the PacifiCorp corridor;
2. The portion of property from the eastern border of the PacifiCorp corridor to the western edge of the proposed road dedication to remain Agriculture and that not accessory dwelling units be allowed;
3. A 66-foot corridor be dedicated for right-of-way; and
4. The remainder of the property shall be rezoned as RA2.

The City Council could also retain Agriculture zoning for the western portion of the property recommended by the Planning Commission to be rezoned OS-N, as the Agriculture zone is appropriate for the open space land use designation and to prevent a small parcel of OS-N zoning as the powerline corridor has not yet been rezoned to the OS-N zone. The western parcel could then be zoned to OS-N at the time of the rezoning of the powerline corridor.

The Planning Commission added a note that there may be a possible need to split the property into two lots due to the right-of-way dedication. Staff agrees with this and recommends that the property owner record a plat, going through the final plat process with staff, to establish the two lots and the road dedication.

Mr. Kane verified that if the property to the west of the right-of-way retained Agriculture zoning, the property owner could install a barn or similar structures permissible in that zone that would be prohibited if that section of the property were rezoned to RA2. The rezone may be approved prior to the landowner recording separate plats with the City. Generally, taxation is based upon use rather than zoning, so rezoning the property should not increase the landowner's tax burden. The location of the powerline reduces the property use and taxation for that portion of the property.

Discussion ensued regarding the potential taxation impact on the landowner of dividing the property and greenbelt classification qualifications.

Councilmember Clark expressed concern regarding City Council decisions' impact on residents and landowners.

Councilmember Love expressed concern regarding the Planning Commission's recommendation to prohibit accessory dwelling units as she did not desire to take away resident rights.

Mr. Kane explained that if the land were divided into multiple parcels, the size of the parcel to the east of the right-of-way would be smaller than the acreage size standards necessary for a primary structure, which is a requirement for an accessory dwelling unit. An accessory structure would be allowed on the eastern portion of the property in conjunction with the proposed single-family home.

2. AGENDA REVIEW

10. AGREEMENTS

10.A. AGREEMENT – Addendum to Grow Real Estate Purchase Agreement

Councilmember Love requested clarification regarding the item and expressed concern regarding property value appreciation increases from the original approval for disposal by the City Council in July 2018.

Mr. Cook explained the purchaser owns the adjacent property and is in negotiations with potential buyers for both properties. The applicant requires authorization to indicate his ability to sell both properties. Staff feels the previously agreed upon appraisal value is still valid.

Councilmember Clark inquired if the Councilmembers desired to discuss the item in a closed session as the previous closed session discussion regarding the item was prior to Councilmember Love's tenure.

Mr. Cook stated the date of the agreement in the staff report was incorrect and had occurred in 2019, not 2018. He said concerns could be discussed in an open meeting and would not require a closed session. Staff believes that selling the property to allow development to generate tax revenue would be mutually beneficial to the applicant and the City.

Mr. Jerome stated that as the parcel of land is not of value to anyone other than the adjacent property owner because it is too small to support a commercial development without combining with the adjacent property, the City agreed to sell the land at a price with consideration to the limitations of the parcel location.

12. CHANGE ORDERS

12.A. West Access Road Construction Management Change Order #1 – Project Engineering Consultants

City Engineer Chris Trusty explained the original cost for construction management included only inspection services and not contract management. Because the City wanted to ensure that Facebook paid all costs associated with this project, the consultant was asked to provide a bid for contract administration in addition to the inspection services. The original contract was for \$33,750 and with the change order for \$34,350, the total contract amount is \$68,100 due to the increase in the scope of the duty performance.

Mr. Trusty stated that future bid requests will include project management to ensure the entity is responsible for the financial responsibility and to prevent the burden of daily project management from being placed upon City staff, although staff will still perform overall oversight and approval duties.

12.B. Wastewater Treatment Plant Expansion Change Order #2 – FX Construction

Mr. Trusty stated that large projects often require change orders for issues that arise during the project, and this request includes items compiled over several months that will assist staff in operational maintenance of the projects.

Councilmember Clark requested an explanation regarding the RAS and cannibal return line.

Mr. Trusty explained that return activated sludge (RAS) utilizes bacteria to reduce sludge output.

Councilmember Clark expressed her preference for smaller, more frequent change orders rather than grouping items together in a single request when possible.

Mr. Trusty explained the majority of the change order request is for a new sewer main. FX Construction's analysis represented a competitive bid. He presented the City Council with the change order as soon as he was able.

Councilmember Love requested further explanation regarding the \$1,930,500 gravity sewer main installation.

Mr. Trusty stated the expense is the first step to increase the City's head works and additional projects will continue to expand the infrastructure to accommodate additional growth. The expense had been identified in impact fees. The sewer main had originally been considered as a separate, future project, but it was determined that it would prudent to move forward with the expansion now.

14. RESOLUTIONS

14.A. RESOLUTION – Interlocal Cooperation Agreement with Eagle Mountain City for Law Enforcement Services

Senior Management Analyst Evan Berrett presented the item and reviewed the notable changes in the agreement. The general contract revisions suggested by the Utah County Sheriff's Office (UCSO) and reviewed by staff include a four-year contract with automatic renewal in 2024, unless either party gives notice of the intent not to renew, an increase in the notice of termination from 90 days to one year, the removal of the requirement for one deputy per 1,000 residents, and the addition of a 4% automatic annual increase of deputy services each year. The County and City discussed and agreed upon a staff plan that ensures the needs of the City and its residents are being met and the personnel are able to carry out their duties in a safe and efficient manner.

Chief Deputy Sheriff Eric McDowell explained the verbiage requiring one deputy per 1,000 residents had been overlooked in previous renewals of the contract and is, unfortunately, an unreasonable, cost-prohibitive level of service standard.

Mr. Berrett stated that the City projects a 4% to 5% annual service increase to maintain expected officer counts. This number is consistent or lower than other comparable municipalities and is appropriate for the City's needs.

Discussion ensued regarding the scope and timing of the annual service increase.

Mr. Berrett presented asset ownership changes. The County agrees to purchase the necessary equipment funded by the City. The City repays initial costs at established depreciation terms. At the end of the depreciation period, the County sells the equipment and vehicles at auction with the revenue going to the City within 30 days. If the County wants to keep the equipment after depreciation, the County will pay the City the fair market value of the equipment. If the contract between the UCSO and the City is terminated, the terms of the equipment ownership and transfer are detailed in the contract. The City could choose to retain rather than sell the equipment if desired.

The County will now prosecute City class B and class C misdemeanor criminal citations and complaints and egregious City criminal ordinance violators until the City has its own dedicated prosecutor or contracts with another Justice Court. Staff is pursuing an Administrative Law Judge to handle administrative/civil code violations. The City is ending a 50/50 Citation Credit Split with the County for approximately \$92,000 per year, as the County was dissatisfied with the credit split arrangement, which is nonstandard, as the County incurs the overhead costs.

Deputy Sheriff McDowell assured the Council that the County's agreement to prosecute egregious violations of City ordinances will not alter the enforcement of the violations.

15. MASTER SITE PLAN

15.A. MOTION – Scenic Mountain Phase C Master Site Plan

Mr. Kane presented the item. The entire Scenic Mountain development project includes just under 35 acres of land on the south side of Wride Memorial Highway and northeast of The Ranches. The project was granted a master development plan (MDP) and master development agreement (MDA), with the latest amended and restated agreement signed in March 2017. The MDA requires a slope transition area/natural open space along the eastern and southeastern portions of Phase C due to topography and to create a transition between uses. Phase C requires 1,000 square feet of open space per residential unit. The land use proposed is townhome residential for 84 units with alley-loaded garages.

Based on the size of the subject property as over 5 acres, the proposed use of townhomes, and the development occurring in three separate phases, the development requires the approval of a master site plan, which Municipal Code allows to be used as the preliminary plat. The City can choose to waive the requirement for site plan applications for the individual phases based on the master site

plan submission. Each separate phase will require individual final plats. A multifamily project, according to City standards at the time of the MDA signing, also requires the approval of a conditional use permit.

The MDA divides the project into three planning areas. Planning Area 1/Phase A is a single-family cluster home development with the right to build up to 86 residential units with a gross density not to exceed 5.49 units/acre. The approved preliminary plat for Phase A includes 80 cluster homes on 15.65 acres. Planning Area 2/Phase B is a townhome development with the right to build up to 83 townhome units with a gross density not to exceed 8.23 units/acre. The approved preliminary plat for Phase B includes 40 townhome units on 4.16 acres, reduced from the original 10.09 acres due to land acquisitions by the Utah Department of Transportation (UDOT). Planning Area 3/Phase C is the subject of this application and was preserved as a flexible use area development allowing either a commercial office/retail development, residential units under the previous Tier III-Tier IV subdivision requirements, or a combination of residential and commercial units. The Phase C acreage was reduced from 7.22 acres to 5.39 acres due to UDOT acquisitions. The original approval permitting 120 units was reduced to 89 units due to these acquisitions. The application proposes 84 units for Phase C. The MDA allows for a maximum density of the entire project of 10.15 units/acre.

The MDA requires compliance with the Municipal Code standards at the time of the March 2017 signing. The MDA also includes a statement that "[n]otwithstanding anything to the contrary herein, any City ordinance, amendment to the City's laws, or other development standard enacted by the City after the date of this Agreement which has the effect of prohibiting and/or materially and unreasonably restricting Developer's rights to develop the vested densities set forth in this Agreement and the Master Development Plan for the Property shall be inapplicable to the Property ... and shall not affect or regulate the development and use of the Property, unless the City Council, on the record, finds that a compelling, countervailing public interest would be jeopardized by applying the provisions of this Agreement."

Based on the approvals in Phases A and B and the request for Phase C, the overall density is 8.1 units/acre. The applicant proposes to develop Phase C in three phases. Phase 1 includes 13 townhomes west of Vernham Lane. Phase 2 includes 39 townhomes south of Hurstbourne Drive. Phase 3 includes 32 townhomes north of Hurstbourne Drive.

The development will utilize the road network currently under construction in the development, as well as additional alleys. Access is provided to Wride Memorial Highway on the north, to Phase A to the south, to Phase B to the east, and a stub road to the west for the future development of vacant land. Staff recommends renaming Elkhorn Drive as Elkhorn Road is an existing road in the City in the Valley View North subdivision. "No parking" signs and restrictions need to be applied to one side of any road that is under 32 feet in width and should be applied to the same side of the street where fire hydrants are located with the signs separated no more than 100 feet apart.

Multifamily developments require one off-street guest parking space for every three units. With 84 townhomes, Phase C is required to have 28 off-street parking spaces. The plan calls for 35 guest parking spaces with 21 standard off-street spaces and 14 parallel parking spaces along the north side of Hurstbourne Drive. A fire hydrant should be added near unit 146. The fire hydrant detail

in the MDP should be updated to the City standards. All alleys need a turning radius at the entry/exit points for fire apparatus.

Retaining walls are proposed adjacent to the open space along the southeast edge of the property. Retaining walls should be limited to five feet in height; any wall needed in excess of five feet should be tiered with each wall a maximum of five feet and a horizontal separation of six feet. The open space along the southeast portion of the project is required by the MDA as a slope transition area/natural open space. Phase C includes a pickleball court on the south side and a playground on the east side. The entire Scenic Mountain project requires at least 468 amenity points. Phase C includes amenities totaling 155.8 points. When added to the current points for phases A and B, the overall total is 537.5 points. Staff recommends a path/stair connection from the pickleball court to the trail to the east.

The applicant has proposed a wood-alternative composite fence of six feet in height in a grey color; the City Code at the time of MDA signing permitted this type of fence. Chain-link sport fencing of eight feet in height is proposed around the pickleball courts. Chain-link fencing is permitted for this type of use. The USA Pickleball Association, however, recommends a fence height of ten feet.

The project complies with the development and design standards at the time of MDA signing except for variance in roof height, cluster mailboxes, and the location of mechanical equipment. EMMC 17.72.040(C) requires varying roof heights. EMMC 17.72.040(J) states cluster mailboxes should “emulate the buildings in materials and color.” Additionally, staff recommends that the cluster mailbox be located on Hurstbourne Drive adjacent to the retention area for safer access and to permit residents to utilize guest parking when picking up their mail. EMMC 17.72.040(K) requires the screening of mechanical equipment; the plans do not note the location of each townhome’s mechanical equipment such as HVAC compressors.

The potential use to the west of the property is commercial, the use to the south is cluster homes with an approximate RC to MF1 current zoning class, and the use to the east is townhomes with an approximate MF1 current zoning class. The proposed development of Phase C correlates equivalently to between MF1 to MF2 under the current zoning designations.

The development includes a road network of public and private roads as well as alleys. Although the standard regarding impact on surrounding areas typically applies to commercial developments, Phase C includes congregation and activity areas for a pickleball court off Elkhorn Drive and a playground off Crowley Way. A conditional use permit for Phase B was granted without conditions.

The Planning Commission held a public hearing on the master site plan application on December 8, 2020 and voted 4 to 1 to recommend denial to the City Council of the application. The dissenting vote by Commissioner Wells was based on her willingness to work with the applicant to resolve the raised concerns.

Staff recommends that the City Council approve the master site plan for the reasons set forth in the staff report and the meeting, with the following conditions:

1. Approval of the master site plan to serve as approval of the preliminary plat;

2. Adjacent buildings cannot have the same color palette;
3. Rename Elkhorn Drive;
4. "No Parking" restriction for one side of any road under 32-feet in width;
5. Replace fire hydrant detail with City's fire hydrant detail;
6. All alleys need a turning radius at the entry/exit points;
7. Approved fencing for Phase C shall be used in Phase B as well;
8. Retaining walls at a maximum of five feet, or tiered, with a fence between retaining wall and trails;
9. Addition of a path/stairway from the pickleball court to the trail to the southeast;
10. Pickleball court fencing to be ten-feet in height;
11. The cluster mailbox shall be relocated to Hurstbourne Drive by the retention area;
12. The cluster mailbox shall be designed to emulate the design of the townhomes in materials and colors;
13. Each townhome's exterior mechanical equipment to be screened from view; and
14. Site plans for each of the separate phases are not required.

Councilmember Clark expressed concern that the site plan had 13 conditions that had not been addressed by the applicant prior to the meeting and that the elevations presented did not adhere to City design variation standards.

Mr. Kane explained that the staff recommended conditions are based upon an updated site plan received after the development review committee. As the applicant desired to move forward with the application, staff added recommendations as suggested conditions of approval. He clarified that Municipal Code standards do not require appearance variance in adjacent townhome units.

Applicant representative Jason Harris with Fieldstone Homes stated their willingness to comply with the staff recommended conditions. He said that the presented elevations meet Municipal Code requirements and that they are willing to discuss the color palette; however, the colors utilized are consistent with design trends and are cohesive with the other phases of the project.

Councilmember Clark cited Municipal Code standards for multifamily buildings and stated she felt the provided elevations did not meet the intention of the standards.

Mr. Harris presented renderings detailing the architectural elements in the design including detailed grills, decorative gables, bay windows, staggered rooflines, decorative trim, window grids, pop-outs, architectural lighting, porches, columns, and decorative doors. He said the elevations are similar to the elevations approved in Phase B except for the garage location. The MDA presents the potential types of plans and the states that the plan will change. The approved elevations in Phase B likewise differ from the MDA renderings.

Councilmember Clark noted that the renderings in the MDA presented distinctive individual units that fit into a cohesive whole, opposed to the renderings provided with identical, horizontally staggered units.

Councilmember Love concurred that the product presented in the MDA is significantly different from the currently proposed elevations. She expressed concern with the guest parking and did not feel that the parallel parking stalls meet the Municipal Code standards for off-street parking.

Councilmember Clark recommended delaying additional discussion until policy session when Councilmember Curtis is present.

Mr. Cook recommended moving the conditional use permit appeal to after the City Council policy session to allow additional time during the policy session to discuss and resolve concerns prior to the appeal.

Councilmember Love noted her additional concerns to allow the applicant time to prepare a response for policy session. She expressed concern with the amenities not being located along public roads and felt the playground and pickleball courts are not easily accessible by the trail especially due to the intention for the area between the trail and the playground to remain natural landscaping and the location of the single entrance to the pickleball court.

Mr. Kane clarified that the standards require that all parks be accessible by a public road, not necessarily the individual amenity features or elements. In the case of this development, the trail system could be considered to be the overall park and portions of the trail system are accessible by public roads.

Mr. Harris stated the amenities are spaced throughout the various phases of the overall community and intended for all residents.

16. PRELIMINARY PLAT AMENDMENT

16.A. MOTION – Brylee Farms Preliminary Plat Amendment

Mr. Kane stated the preliminary plat amendment is a request to relocate the amenities for the project moving the playground and pickleball courts to the Phase B townhome development and the pool and clubhouse to the Phase A single-family development. During the December 1, 2020 City Council meeting, the item was tabled due to concerns with the proposed location for the pool and clubhouse with recommendations to consider other locations. The applicant has requested to continue with the proposal as submitted.

17. ORDINANCE

17.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapters 2.05 Employees and Personnel and 2.10 Mayor, and Enacting Chapters 2.16 City Administrator and 2.27 Board Appointment Process.

Mayor Westmoreland recommended delaying discussion of the item until policy session when Councilmember Curtis would be present. The Councilmembers concurred.

3. ADJOURN TO A CLOSED EXECUTIVE SESSION

No closed session was held. Mayor Westmoreland adjourned the meeting at 6:16 p.m.

7:00 P.M. POLICY SESSION – VIA LIFESIZE ELECTRONIC MEETING, DIRECTLY FOLLOWING THE APPEALS BOARD MEETING

The Appeals Board Meeting was moved to after policy session.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. Councilmember Jared Gray was excused.

CITY STAFF PRESENT ELECTRONICALLY: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Kimberly Ruesch, Finance Director; Pete Kane, Planning Manager; Planner; Fionnuala Kofoed, City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Ross Fowlks, Fire Chief; Eric McDowell, Deputy Sheriff; Linda Peterson, Communications Director; Evan Berrett, Senior Management Analyst; and Robert Ballif, Engineering Assistant.

4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 7:05 p.m.

5. PLEDGE OF ALLEGIANCE

City Recorder Fionnuala Kofoed led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

- The City offices and library will be closed Monday, January 18, 2021, for the Martin Luther King Jr. holiday.
- Live Christmas tree drop off is available at the Pony Express rodeo grounds parking lot through January 25, 2021. Please be sure trees do not have any lights or other decorations before dropping them off.

For details about these and other upcoming events, please visit the City website at emcity.org/events. To receive City notifications, including emergency information, news, events, and traffic alerts, sign up at emcity.org/notifyme.

7. PUBLIC COMMENTS

Mayor Westmoreland opened public comment at 7:08 p.m. As there were no comments, he closed the public comment period.

8. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Love

Councilmember Love wished everyone a Happy New Year.

Councilmember Clark

Councilmember Clark thanked staff and the Cemetery Board for hosting the Angel Garden Commemoration. She is grateful to staff for their efforts to repair the Skyline Ridge water main. She thanked all of staff for their herculean efforts during the pandemic.

Councilmember Burnham

Councilmember Burnham echoed Councilmember Love and Councilmember Clark's sentiments. She expressed optimism regarding future City accomplishments in the upcoming year.

Councilmember Curtis

As he was not in attendance during the work session discussion, Councilmember Curtis inquired regarding the change order increase for the City sewage system noted in item 12.B. on the consent agenda, as well as the balance of the City's wastewater fund.

City Engineer Chris Trusty explained most of the increase is for the expansion of the system for pump stations and headworks to accommodate City growth. Additional costs are to make the system more efficient.

City Administrator Paul Jerome stated the City wastewater fund is healthy enough to cover this expense and the City does not currently plan to seek bonds for the expansion. Upcoming projects not related to this project, including expansion and land purchase for rapid infiltration basins will require funding assistance through bonding. The sewer projects are to prepare for the City's future growth to prevent overstressing the system.

Mayor Westmoreland

Mayor Westmoreland welcomed those in attendance, commended staff efforts to continue meetings and accommodate the public during the pandemic. He noted staff efforts in preparation to facilitate in-person meetings once circumstances allow and concurred with Councilmember Burnham's sentiments of optimism regarding the upcoming year. A State of the City address is planned for later this year.

9. RECOGNITION

9.A. Planning Commission – Rich Wood, Planning Commissioner

Mayor Westmoreland thanked Rich Wood for his service to the City on the Planning Commission for the past three years. He presented Mr. Wood with a plaque recognizing his service and sacrifice.

Mr. Wood said he appreciated the opportunity to increase his knowledge regarding land use. He enjoyed his time as a Commissioner and stated the past year serving as Planning Commission Chair was rewarding. He enjoyed working with the City and one of the finest Planning Commissions the City has had. He is proud of the work they accomplished and is grateful for staff efforts.

The Councilmembers thanked Mr. Wood for his service.

CONSENT AGENDA

10. AGREEMENTS

10.A. AGREEMENT – Addendum to Grow Real Estate Purchase Agreement

11. BOND RELEASES

11.A. Arrival Phase B, Plat 5 – Into Warranty

11.B. Brylee Farms Phase A, Plat 2 – Into Warranty

11.C. Overland Phase C, Plat 2 – Into Warranty

11.D. Spring Run Phase C, Plat 1 – Into Warranty

11.E. Scenic Mountain Phase A, Plat 1 – Out of Warranty

11.F. Scenic Mountain Phase A, Plat 2 – Out of Warranty

12. CHANGE ORDERS

12.A. West Access Road Construction Management Change Order #1 – Project Engineering Consultants

12.B. Wastewater Treatment Plant Expansion Change Order #2 – FX Construction

13. MINUTES

13.A. November 17, 2020 – Regular City Council Meeting

13.B. December 1, 2020 – Regular City Council Meeting

14. RESOLUTIONS

14.A. RESOLUTION – Interlocal Cooperation Agreement with Eagle Mountain City for Law Enforcement Services

MOTION: *Councilmember Burnham moved to approve the consent agenda. Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

SCHEDULED ITEMS

15. MASTER SITE PLAN

15.A. MOTION – Scenic Mountain Phase C Master Site Plan

City Attorney Jeremy Cook explained the City Council determined to discuss the master site plan before holding the conditional use permit (CUP) appeal in case the issues regarding the appeal could be resolved with the master site plan approval. The master site plan approval includes additional elements not related to the CUP.

Planning Manager Pete Kane reviewed the item as presented during work session and noted that the condition that the site plans for the individual phases of Phase C are not required, had been omitted from the previous presentation during work session.

Councilmember Curtis stated that his understanding was that projects should be substantially similar to renderings in the approved master development agreement (MDA) and he did not feel that the renderings presented in the application met that requirement and were inferior to the MDA elevations.

Mr. Kane concurred that the designs differ from those presented in the MDA; however, the MDA does not specifically require the elevations be substantially similar to the MDA renderings.

Councilmember Curtis stated that the product offered should be substantially similar to the exhibits provided in the MDA. During the initial negotiations for this project, the City Council was concerned with the elevations for the project due to the location of Scenic Mountain at the entryway into the City. They desired an upgraded product similar to the townhomes located in Mt. Airey and had expressed their desire during the negotiations.

Applicant representative Jason Harris, Vice President Land Acquisitions for Fieldstone Homes, expressed his desire to work with the City Council and staff to adhere to Municipal Code and resolve concerns. He said he will address the concerns that resulted in the denial of the CUP. He explained the drivable surface of the public roads is 33 feet and the drivable surface of the proposed width of Hurstbourne Drive is 34 feet. He stated that parking is permitted on both sides of public roads, but they are limiting parking on the private roads to one side of the road. The passable road width with cars parked along the road will be 17 feet on the public road if vehicles are parked along both sides of the street, and 26 feet on the private roads if vehicles are parked along one side of the street. He said that permitting parallel guest parking would allow them to exceed the parking requirement for the development. He felt that exiting a parallel parking stall is safer than backing out of a parking stall and did not create a health, safety, and welfare issue for the community. He

said that Municipal Code allows for a parking deviation if the option did not impair the service level.

Councilmember Love requested clarification regarding Municipal Code standards regarding the allowance of parking deviations.

Assistant City Administrator/Community Development Director Steve Mumford cited EMMC 17.55.110(G) "Alternative Parking Requirements. Alternative parking provisions which do not fully comply with requirements may deviate from the standards contained in Table 17.55.120(c), Required Parking by Land Use when the planning commission determines that the deviation does not impair the service level required by this chapter."

Councilmember Love stated her understanding of the approval of deviations to the parking standards was regarding parking stall width.

Mr. Kane verified that the parking standards on Table 17.55.120(c) identifies the number of parking spaces for land uses and allows for the approval of a reduction of off-street parking stalls due to the incorporation of parallel parking stalls, if approved by the City Council.

Councilmember Clark stated that parallel parking stalls along the street do not meet the off-street parking requirement, regardless of the road width.

Mr. Harris stated that Municipal Code differentiates between public and private roads and the parallel parking stalls qualify as off-street parking because they are not located along a public road. He requested that the City Council approve the parking alternative as they believe it is beneficial to the project and residents and the width of the private road is sufficient to allow emergency vehicle access.

Councilmember Clark expressed concern regarding pedestrian and vehicle safety in relation to parallel parking stalls and noted that on-street parking issues and traffic are the most frequent type of complaints received by the Councilmembers. She is unaware of anywhere in the City where the City Council has approved parallel parking to count towards an off-street parking stall requirement.

Mr. Harris said the Fire Marshal is available to address any safety concerns the Council has with the plan.

Councilmember Clark clarified her concerns with the parallel parking is not related to fire safety.

Applicant representative Julie Smith with Fieldstone Homes stated that Municipal Code permits parallel parking on minor, local, rural, and alley roads and that private roads are part of the off-street parking zone.

Councilmember Curtis clarified that the concern of the City Council was not whether parallel parking was permitted in the City, but whether the parallel parking stalls could or should count towards the number of required off-street parking stalls for the project.

Mr. Harris presented an alternative parking plan to meet the number of off-street parking stalls for the project that removed the parallel parking stalls on Hurstbourne Drive and added additional off-street parking throughout the development, although he advocated for the parallel parking plan as the better solution. The new proposal with additional off-street parking would reduce the width of Hurstbourne Drive by eight feet.

Councilmember Love stated that the Planning Commission had expressed concern that the parking along Hurstbourne Drive was not readily accessible to the residents on Longleaf Lane and the new parking plan would provide parking closer to the north portion of the project. She suggested adding standards to Municipal Code to require guest parking to be distributed throughout multifamily developments.

Councilmember Curtis expressed concern that allowing guest parking stalls along Hurstbourne Drive would impede snow removal.

Councilmember Burnham noted that the snow removal regulations would not apply because Hurstbourne Drive is a private road; however, the presence of vehicles would still cause snow removal issues for the homeowner's association (HOA).

Mr. Kane said that as the parking is intended for guests, signage and the HOA Declaration of Covenants, Conditions, and Restrictions (CC&Rs) could prohibit resident use of the parking stalls which could mitigate snow removal obstruction.

Ms. Smith stated her willingness for the CC&Rs to prohibit resident parking in the guest parking stalls.

Councilmember Love stated that the purpose of the guest parking standards is to increase development livability for the residents and objected to prohibiting resident parking as insufficient parking is frequently a concern for residents especially when vehicles are required to be off the road for snow removal.

Ms. Smith stated that the parking standards in the MDA require 2.3 parking stalls per unit with one covered stall. The townhomes provide two in-garage parking stalls per unit in addition to the guest parking.

Councilmember Love noted that although the townhomes have in-garage parking for two vehicles, the units lack driveways. Should a resident use their garage for storage rather than parking, the units provide no parking alternative other than the guest parking.

Councilmember Clark inquired if the applicants were willing to provide both the additional off-street parking presented in the new plan and the parallel parking along Hurstbourne Drive.

Mr. Harris stated he would consider providing the additional parking but preferred to provide the new plan with the off-street parking stalls to fulfill the Municipal Code requirement.

Councilmember Clark stated that when she has visited the townhomes adjacent to the project and the current townhome development lacks sufficient parking, even though it met the City standards. She encouraged the applicants to visit their development in the evening to observe the parking concerns.

Mr. Kane verified that the City Council could, but was not required, to approve the parallel guest parking. The revised parking plan meets the required 28 off-street parking stalls but provides seven fewer parking stalls than the original proposal with 14 parallel guest stalls.

Mr. Cook noted the proposed location of the additional off-street parking obstructs the trails between the units. He was surprised that after the compromises the City has made for the project, the applicants were unwilling to provide both the parallel parking stalls and the additional off-street parking stalls. He advised the applicants not to expect the City to extend flexibility in the future if they were not willing to reciprocate.

Mr. Harris stated that the placement of the off-street parking in relation to the trail could be adjusted and expressed his willingness to provide both the parallel and off-street parking. He presented the open space amenities plan to show how the amenities for this phase relate to the overall project and identified the accesses to the park space from public roads.

Ms. Smith explained parking amenity points were only awarded for additional parking above the requirements.

Mr. Kane explained that the Scenic Mountain MDA allows for the transference of amenity points between the phases of the project and the development will be under a single HOA with resident access to all the amenities.

Discussion ensued regarding amenity point transference, the MDA allowances for this development, and amenity requirements for single-family versus multifamily units.

Ms. Smith stated due to the size of the area, all the units are within a few minutes walking distance from all the amenities.

Mr. Kane stated the MDA required a clubhouse for the multifamily units and the project complies with the requirement.

Councilmember Burnham noted that Phase B has already been approved and evaluation of Phase C should be in consideration with the vesting of the previous approvals and the MDA.

Mr. Mumford stated that in his initial review of Phase C, he had concerns regarding the amenities until he evaluated the project in relation to the MDA. Staff directed the applicants to provide a beneficial amenity in this phase for the residents and the developer determined to include the pickleball court. When evaluating the project, he considered the Scenic Mountain Development as a whole.

Councilmember Love expressed concern regarding the access to the amenities from the trail due to fencing, retaining walls, natural landscaping, and topography barriers and desired additional access to the pickleball court and tot lot.

Fieldstone Homes Landscape Engineer Jeremy Ainsworth presented a graphic representation of the pickleball court and stated the location of the pickleball court is to be centrally located to the overall development. He agreed to provide increased accessibility to the pickleball court and tot lot.

Mr. Harris stated they agree to comply with the staff recommendation to provide additional access to the pickleball court and implementing increased access to the tot lot is topographically feasible.

Brian Gabler with LEI Engineering stated that stairs could be added in between the retaining walls to increase the tot lot access.

Councilmember Clark inquired if the amenities are wheelchair and stroller accessible.

Mr. Harris stated that all amenities are wheelchair and stroller accessible. He cited a section of the MDA that stipulates “the Parties understand and agree that the final configuration of the townhome elevations must comply with the City Laws and will vary from the depictions shown on Exhibit F.”

Councilmember Curtis expressed his frustration with the differences between Exhibit F in the MDA. He said the proposed elevations were inferior to those in the MDA and felt the vast differences between the elevations were akin to a bait and switch.

Mr. Harris stated they did not intend to offer an inferior option and believe the proposed elevations are aesthetically appealing and beneficial for the community.

Councilmember Clark noted that the MDA required for the elevations to adhere to Municipal Code requirements and felt the proposed elevations did not comply with City standards.

Mr. Harris presented the horizontal articulation of the building and the design elements. He said they believe the elevations meet Municipal Code requirements. He felt some of the objections were due to personal preferences.

Councilmember Curtis stated a side by side comparison of the elevations demonstrates superiority in design, articulation, and roofline variance in Exhibit F in the MDA lacking the currently proposed elevations.

Mr. Kane stated that the review of the updated elevations determined adherence to City standard requirements except for roof height variation.

Mr. Harris stated that the elevations use Hardie board and board and baton to fulfill the mixed material requirements.

Councilmember Clark expressed concern with the similarity between Hardie board and board and baton.

Mr. Kane verified that Municipal Code identifies Hardie board and board and baton as separate materials that fulfill the requirement. He explained that garage doors and windows count as negative space.

Mr. Harris stated that the rear elevation was of concern due to the proximity to Wride Memorial Highway and due to those concerns, the front elevation faces towards Wride Memorial Highway with the rear elevations fronting on the private drives.

Mr. Mumford concurred with Councilmember Curtis that the elevations in the Exhibit "F" are superior to those in the current proposal, except for the materials used, and his frustration with the differences between elevations proposed in MDAs and the elevations submitted with projects. He noted that the elevations have been improved from the first submission to the City. He expressed his preference for external visual variation between townhome units. The proposed elevations represent current design trends. He confirmed that the City Council can require roofline height variance in order for the project to adhere to Municipal Code standards.

Discussion ensued regarding the preferred method for the applicants to increase the roofline height variance.

Troy Gabler with Fieldstone Homes President apologized that the plan conflicted with City Council expectations and said they took over the project a couple of years ago. He said the contour of the land will add to the "elevation reprieve." He expressed concern that adjusting the roofline according to a subjective height difference may result in an aesthetically displeasing result and requested for their team to be able to propose elevations with increased diversity between individual units.

Discussion ensued regarding permitting the applicants to propose new elevations.

Councilmember Curtis stated he was unwilling to allow flexibility for the applicants to amend the elevations due to concerns the bare minimum requirements would be addressed.

Councilmember Love concurred with Councilmember Curtis and said she desires to approve the new elevations.

Mr. Gabler stated they did not want to do a full redesign of the project or alter the architecture as the elevations adhere to the majority of Municipal Code requirements.

Councilmember Love clarified that she preferred for the applicants to alter the front elevations to differentiate the individual units rather than only altering the height of the rooflines.

Councilmember Clark concurred with Councilmember Love and advised the applicants to vary the material, window placement or type, or doors.

Mr. Harris stated their willingness to amend the elevations; however, he expressed hesitation to commit to specific changes without consulting their architects to determine how the changes would impact the overall design, interior, and aesthetics.

Discussion ensued clarifying the City Council's concerns and suggestions on how to resolve those concerns.

Councilmember Burnham stated she desired for each unit to be distinct while remaining in harmony as a cohesive townhome unit.

Mr. Harris requested for the City Council to inform him of any additional questions regarding the Planning Commission concerns about the lack of man-doors on the units that had not been resolved by the letter from the Fire Marshal. He stated a ten-foot-high fence for the pickleball court would appear intrusive due to the court's location in the center of the community and recommended retaining the eight-foot fence. He stated that there are a few points along the trail where the retaining wall height or spacing requirements would be difficult to implement due to topographical impediments.

Councilmember Love stated she did not have a strong opinion regarding the height of the pickleball court fence; however, Municipal Code stipulates a maximum retaining wall height of five feet and desired for the retaining walls to adhere to the standards.

Councilmember Curtis stated that the Municipal Code retaining wall height standard is non-negotiable.

Councilmember Clark concurred regarding the retaining wall height requirement because the standard is due to safety purposes not aesthetic reasons.

Mr. Trusty stated that the five-foot height maximum Municipal Code standard is specific to retaining walls and not rock retaining walls.

MOTION: *Councilmember Burnham moved to table the Scenic Mountain Phase C site plan until the next meeting, directing the applicant to return with elevations that differentiate between the individual units, an updated parking plan, and an amenity plan with increased connectivity as discussed. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

16. PRELIMINARY PLAT AMENDMENT

16.A. MOTION – Brylee Farms Preliminary Plat Amendment

Mr. Kane presented the item. Brylee Farms includes Phase A single-family and Phase B townhome residential developments. The preliminary plats for these phases were approved in 2018 and 2019, respectively. Phase A is being developed by Fieldstone Homes and Phase B is being developed by

Concord Homes. The developers desire to merge the homeowners' associations (HOAs) that will oversee the open space and amenities in the developments into one master HOA. The proposed amendment changes the park space in Phase A from a playground to a swimming pool, clubhouse, active lawn space, and parking areas. The proposed amendment in Phase B moves the separate tot lot to the large park area, leaving the former tot lot area as improved open space; removes the sport court above the underground retention to leave the land as improved park space for informal sport activities; and expands amenities at the primary amenity area with pickleball courts, a large playground, pavilion, and parking areas. Based on the proposed open space and amenities amendment, the new plan would achieve 1,003 points in total between the two phases where 737 points are required.

The applicants are seeking to amend the preliminary plat for the two phases with regards to the open space and amenities. There are no proposed changes to the number of lots, density, or right-of-way configurations. Multifamily projects are required to include a clubhouse and swimming pool (EMMC 17.25.050). These elements cannot count toward the amenity points as they are required for this development type. The proposed pool is sized at 2,000 square feet, exceeding the size minimum of 1,268 square feet by 732 square feet. The proposed pool and clubhouse meet the size requirement of the Phase B development but will be located within Phase A. The amenity area within Phase A is within a quarter-mile distance of all residences in both phases except for twelve townhome units in the northwest corner. The amenity area within Phase B is within a quarter-mile distance of all residences in both phases except for six single-family properties in the southwest corner. Per the approved preliminary plat for Phase B, a pedestrian crossing was to be included between the main amenity area and the trail to the west.

The Planning Commission held a public hearing on November 10, 2020, to review the preliminary plat amendment application. The Commission unanimously voted, with one absentee, to recommend approval of the preliminary plat amendment with the condition the applicant shall remove two spaces in the center of the row of the parking area on the west side of the primary amenity area in Phase B in order to incorporate a landscape island and pedestrian crossing.

During the December 1, 2020, City Council meeting, Councilmembers raised concerns about the proposed location of the clubhouse and pool. The request was tabled with feedback related to the clubhouse and pool location to potentially relocate the pool to the location of lots 69 to 72, swap the amenities between the two phases, or place the pool and clubhouse in a more central location.

Councilmember Clark stated that the Municipal Code square footage requirements for clubhouses include all the residential units being served by the clubhouse. She expressed concern that the applicant was counting additional amenity points for the size of the pool, in excess of the requirement, while also desiring for the increased pool size to offset the deficit in the clubhouse size.

Applicant representative Matthew Loveland with Fieldstone Homes stated that the project would exceed the required number of amenity points, even if the additional square footage for the pool was not included in the calculations.

Mr. Loveland presented a review of the proposal and explained their intention was to partner with Concord Homes to offer grandeur amenities at a reduced HOA assessment to residents of both projects and compared the larger pool and additional amenities to the minimal required amenities for the project. He demonstrated that all the units adhered to the standard for units to be located within a one-quarter mile from a park. He believed that the residents would prefer the increased number of amenities rather than a higher HOA assessment with the amenities specifically required for their unit type to be located slightly closer to their homes. He said that a redesign is not an option due to the progress on the project and other constraints and because they believe their plan is what is best for the community.

MOTION: *Councilmember Burnham moved to approve the Brylee Farms preliminary plat amendment with the condition that the parking area on the west side of the primary amenity area in Phase B shall remove two spaces in the center of the row in order to incorporate a landscaped island and pedestrian crossing. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, and Carolyn Love. Those voting nay: Colby Curtis. The motion carried with a vote of 3:1.*

17. ORDINANCE

17.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapters 2.05 Employees and Personnel and 2.10 Mayor, and Enacting Chapters 2.16 City Administrator and 2.27 Board Appointment Process.

Mr. Cook stated the items requested by the City Council at the previous meeting have been incorporated into the proposed Municipal Code amendment.

Councilmember Love requested for the requirement for the City Council to approve amendments to the Policies and Procedures to be included in Municipal Code.

Mr. Cook stated the City Council could elect to amend the verbiage in EMMC 2.10.010(E) to “shall make recommendations to the city council regarding the City’s policies and procedures found by the mayor to be necessary for the proper administration of the city council which shall be approved by the city council,” to accommodate Councilmember Love’s request. He explained that the approval process has always included city council approval; however, city council approval may be codified if desired.

Councilmember Love expressed concern regarding the mayor recommending to the city council a process to hire a new city administrator and advocated for the establishment of a set process that included the City posting the position and accepting applications. She stated her support for the City’s practice to implement succession plans and hiring from within; however, she believes as a government entity transparency and due diligence are important and that posting and interviewing should be required accordingly.

Mr. Cook stated that a committee and complex hiring process might be necessary when seeking an applicant regionally; however, that process may not be appropriate in all instances. He expressed concern regarding implementing a complex, unnecessary process that may require a future City Council to hold a special session to amend delaying the hiring of a new City Administrator.

Councilmember Love clarified that she does not desire to codify a specific, complex hiring process, but desires for the hiring of the position to require posting and accepting application.

Mr. Cook stated that his understanding of the inclusion of the proposed amended verbiage that “the process shall, at a minimum, include public noticing for the position,” in EMMC 2.16.020 indicated the position would be posted externally and would necessitate accepting applications.

Councilmember Love requested clarification regarding the public notification process and posting locations.

Mr. Cook stated that if the City does not have an internal applicant in mind for the position, the City would likely hire a consultant to assist with recruiting applicants.

Ms. Kofoed recommended for the wording to include the posting of the position to clarify the position would be posted in the applicable locations.

Councilmember Clark inquired if Councilmember Love desired for the line “the mayor shall recommend to the city council a process to hire a new city administrator,” to be stricken from EMMC 2.16.020.

Councilmember Love stated she would support the retention of the line if the requirement to post the position were also required.

Councilmember Curtis suggested to amend the verbiage to “the mayor may recommend to the city council a process to hire a new city administrator.”

Councilmember Clark expressed her preference for “shall” rather than “may” and concurred that the position should be required to be posted externally as it will resolve most of her concerns.

Discussion ensued debated whether the standards should include “shall” or “may.”

Councilmember Curtis expressed concern that a mayor could include the proposed process and the name of his or her recommended applicant as items on the same agenda.

Councilmember Clark concurred with Councilmember Curtis’ concerns and recommended for the process to be determined prior to the submission of the name of an individual for consideration.

Councilmember Love stated she felt the intention for the hiring process to proceed with the selection of the presentation of a name for consideration was clearly understood in the proposal.

Councilmember Burnham concurred with Councilmember Love that the order of the process was clear as written; however, she did not object to additional language to prescribe that the establishment of the process was prior to the naming and presentation of the mayor's recommended applicant.

Discussion ensued regarding verbiage specifications to ensure the process proceeds as requested by the City Council.

Councilmember Clark noted that other cities include a term of employment, an annual performance review of the City Administration performed by the Mayor, and a six-month term in which a newly elected mayor may not remove the existing City Administrator.

Councilmember Curtis expressed concern about implementing standards that offered an unreasonable level of job protection for a City Administrator that could prevent the necessary or appropriate removal of a City Administrator.

Discussion ensued regarding the inclusion of protections against a new mayor replacing the City Administrator for political or personal reasons.

Councilmember Love stated that the removal of the City Administrator required the approval of the Mayor and the City Council.

Mr. Cook stated that the proposal provides that "the city administrator may be removed and the contract of the city administrator may be terminated by a majority vote of the city council with the mayor acting as a voting member of the city council," which provides protection to the City Administrator due to the requirement for a vote by at least four of the six members and the contract includes a six-month severance package. He explained that the position is intended to be subject to at-will employee conditions. He stated that an annual review would be appropriate and could be beneficial to both the City and the City Administrator regarding salary, duties, and performance.

Councilmember Clark stated the requirement of a majority vote resolved her concerns regarding protecting the City Administrator.

Councilmember Clark requested for applications to be provided to the City Council prior to the publishing of the packet materials to the public.

Mr. Cook clarified that the proposed standards require for the mayor to provide the name and application or resume, if available, of board appointees to the City Council not less than five days prior to public noticing.

Councilmember Curtis recommended for the standards to allow for the mayor or designee to be allowed to provide the materials to the City Council.

Discussion ensued regarding the timeframe for the notification to the City Council prior to public notification in order to address Council concerns regarding potential appointees to prevent the public embarrassment of the individuals.

Councilmember Clark requested for the City Council to be provided the names of possible appointees two weeks prior to the City Council meeting when the names will be announced.

Ms. Kofoed stated that the timing of when the City Council can be provided the names of individuals to fill appointments depends upon when applications are received, and staff is willing to comply with the timeframe stipulated by the Council.

Mr. Cook clarified that the standards under discussion exclude the Planning Commission which is under a separate City statute and regulated by State statute.

Councilmember Love clarified that the City Council only desires to review the applicants selected by the Mayor to fill board vacancies, not all applicants.

Mr. Cook expressed concern that the request for two weeks to review appointments will delay filling board positions but might be preferred by the Council.

Councilmember Clark clarified her request for a two-week timeframe is in part due to the appointments occurring at the end of the year around the holidays and suggested for the process to be amended to accommodate the two-week timeframe if necessary.

Councilmember Love requested for an amendment to the Municipal Code requirements for the Planning Commission to be brought to the City Council and advocated for the same standards to apply for the Planning Commission as other boards.

Discussion ensued regarding the desired timeframe for the Mayor to provide the City Councilmembers with possible appointments for various boards.

Ms. Kofoed inquired if an exception would be allowed for individuals willing to fill board positions that have not applied.

Mr. Cook explained the proposed verbiage requires for the application or resume to be provided "if available" to allow for appointments for individuals that did not apply.

Mayor Westmoreland requested clarification regarding the impact to the processing timeframe if the City Council has objections to the individual proposed by the mayor.

Councilmember Love stated she believes the timeframe would reset and recommended allowing a five-day prior to notification time period rather than two weeks due to the increase to the overall appointment process timeframe.

Discussion ensued regarding the desired timeframe and the impact of the City Council objection to a recommended appointee and the time required for the Mayor to receive feedback from all the individual Councilmembers in order to prevent the public embarrassment of an appointee.

Councilmember Clark stated that although she did not feel that there would be frequent objections to the Mayor's recommended appointees, this process was a kind way to conduct the business of the City.

Discussion ensued regarding potential scenarios that would impact the desired timeframe.

Councilmember Clark conceded to retain the timeframe as proposed for the Mayor to provide the City Council the name of potential appointees not less than five days prior to publicly noticing the possible appointment.

Councilmembers Clark and Love recommended tabling the item to allow time for the requested changes to return to the City Council for approval at a future meeting.

Discussion ensued regarding the desired requirements for the frequency of the City Administrator's reviews with the Mayor. Mr. Cook recommended once per calendar year to coincide with the contract date.

Councilmember Burnham inquired regarding the impact of delaying the ordinance approval to the upcoming 2021 board appointments.

Councilmember Clark stated that the Mayor could elect to follow the changes proposed by the City Council even though the proposal has not been approved.

Mr. Cook noted that the changes requested by the City Council in this meeting only require the addition of a few words to the proposed amendments presented in the meeting. He clarified that the desired changes to the Planning Commission standards would need to be noticed separately and could not be added to the proposal for this item on a future agenda. He recommended passing this item and including an amendment to the Planning Commission standards at a future meeting.

Councilmember Love requested for the City Council to be able to review the amended verbiage prior to passing the item.

MOTION: *Councilmember Love moved to table an ordinance of Eagle Mountain City, Utah amending the Eagle Mountain Municipal Code chapters 2.05 Employees and Personnel and 2.10 Mayor, and Enacting Chapters 2.16 City Administrator and 2.27 Board Appointment Process in order to allow Mr. Cook to implement the requested amendments in accordance with the following proposed recommendations discussed in the meeting:*

- 1. EMMC 2.10.010(E) "Shall make recommendations to the city council regarding the City's policies and procedures found by the mayor to be necessary for the proper administration of the city council which shall be approved by the city council;"*
- 2. EMMC 2.16.020 "The process shall, at the minimum, include posting the position and accepting applications;"*

3. *The line “the mayor shall recommend to the city council a process to hire a new city administrator,” to be stricken from EMMC 2.16.020;*
 4. *The mayor shall conduct an annual performance review of the City Administration in correlations with the date of the employment contract; and*
 5. *A designee may provide the City Council with the name and application or resume, if provided, of the Mayor’s recommended board appointees.*
- Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

18. CITY COUNCIL/MAYOR'S BUSINESS

Councilmember Clark

Councilmember Clark expressed concern regarding Municipal Code intentions and specifications in relation to City Council expectations for MDA elevations, multifamily parking, and pickleball height standards. She desires to discuss and address potential amendments via applicable methods. She requested for the Parks and Recreation Board to research and determine an appropriate height requirement for pickleball fencing to be codified.

Councilmember Curtis

Councilmember Curtis inquired if the recently adopted standard application for MDAs could include the requirement for the site plan elevations to be significantly similar to elevations approved in the MDA.

Mr. Cook stated that the lapse of time between the MDA approval and construction may necessitate alterations to the MDA elevations due to market changes and current design trends. He concurred with Councilmember Curtis’ concerns and said that developers might use market changes and design trends as an excuse to attempt to construct an inferior project to the original approval. He stated that staff can explore verbiage to include in MDAs to illustrate City Council expectations regarding allowable elevation variance.

19. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Burnham

Councilmember Burnham stated that the Military and Veterans Advisory Board desires to meet and requested direction if an in-person meeting could be accommodated.

Ms. Kofoed stated she would discuss meeting options with the Military and Veterans Advisory Board and Councilmember Burnham.

Councilmember Curtis

Councilmember Curtis inquired regarding calendar coordination between the City Events Department and the Eagle Mountain Arts Alliance.

Councilmember Clark

Councilmember Clark stated that the groups have been in contact regarding calendar coordination. A Be Ready Eagle Mountain event on Thursday, January 14, 2021, at 7:00 p.m. will include Ham Radio Coordinator Dave Becar explaining the basics of Ham Radio and Councilmember Clark speaking on getting started with Emergency Preparedness.

20. COMMUNICATION ITEMS

20.A. Upcoming Agenda Items

21. ADJOURNMENT

MOTION: *Councilmember Clark moved to adjourn the meeting at 11:02 pm. Councilmember Love seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, and Carolyn Love. The motion passed with a unanimous vote.*

The meeting was adjourned at 11:02 p.m.

Approved by the City Council on January 19, 2021.



Fionnuala B. Kofoed, MMC
City Recorder